

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Benjamin Shelton	Team: Squad #6	CCRB Case #: 201806962	☒ Force ☒ Abuse	☐ Discourtesy ☒ O.L. ☐ Injury
Incident Date(s) Sat, 08/18/2018 10:38 AM	Location of Incident: 14th Precinct stationhouse	Precinct: 14	S.O.L. Expires: 02/18/2020	
Date/Time CV Reported Thu, 08/23/2018 11:32 AM	CV Reported At: CCRB	How CV Reported: In-person	Date/Time Received at CCRB Thu, 08/23/2018 11:32 AM	

Complainant/Victim	Type	Home Address
1. [REDACTED] G [REDACTED]	Comp/Victim	[REDACTED]

Subject Officer(s)	Shield	TaxID	Command
1. SGT Douglas Schack	03250	931175	PBMS
2. SGT Edgar Figueroa	01446	947751	MTS PCT
3. POM Luis Pacheco	04577	927310	MTS PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. SGT Jeffrey Murphy	03654	928834	PBMS
2. Officers			MTS PCT

Officer(s)	Allegation	Investigator Recommendation
A . POM Luis Pacheco	Abuse of Authority: Police Officer Luis Pacheco threatened to arrest [REDACTED] G [REDACTED]	A . Exonerated
B . SGT Douglas Schack	Off. Language: Sergeant Douglas Schack made remarks to [REDACTED] G [REDACTED] based upon a mental disability.	B . Substantiated
C . SGT Douglas Schack	Off. Language: Sergeant Douglas Schack made remarks to [REDACTED] G [REDACTED] based upon ethnicity.	C . Substantiated
D . SGT Edgar Figueroa	Force: Sergeant Edgar Figueroa used physical force against [REDACTED] G [REDACTED]	D . Exonerated
E . SGT Edgar Figueroa	Abuse of Authority: Sergeant Edgar Figueroa threatened to arrest [REDACTED] G [REDACTED]	E . Unfounded

Case Summary

On August 23, 2018, P [REDACTED] G [REDACTED] filed the following complaint in person at the CCRB.

On August 18, 2018, at approximately 10:38 a.m., P [REDACTED] G [REDACTED] visited the Midtown South Precinct stationhouse, located at 357 West 35th Street in Manhattan. Mr. C [REDACTED] requested to retrieve confiscated property. PO Luis Pacheco of the Midtown South Precinct, who was at the desk, assisted. However, Mr. G [REDACTED] refused to take his property due to physical damage. When Mr. G [REDACTED] requested to speak to an inspector, PO Pacheco threatened to arrest him for trespassing if he did not leave the stationhouse (**Allegation A: Abuse of Authority, exonerated**). Sgt. Jeffrey Murphy and Sgt. Douglas Schack of the Times Square Unit of Patrol Borough Manhattan South arrived at the front desk area and began speaking with Mr. G [REDACTED]. After a back-and-forth about the rules pertaining to Mr. G [REDACTED]'s vending in Times Square, Sgt. Schack asked Mr. G [REDACTED] if he was retarded (**Allegation B: Offensive Language, substantiated**) and told him to learn how to read English (**Allegation C: Offensive Language, substantiated**). Sgt. Edgar Figueroa of the Midtown South Precinct eventually told Mr. G [REDACTED] that he had to leave. Sgt. Figueroa pushed Mr. G [REDACTED] out of the stationhouse doors (**Allegation D: Force, exonerated**) before threatening to arrest Mr. G [REDACTED] if he returned (**Allegation E: Abuse of Authority, unfounded**).

No summonses were issued and no arrests were made during this incident.

Video footage capturing this incident was obtained. Mr. G [REDACTED] captured most of the incident on his cellphone, which he provided to the investigation (BR 01). Other footage made available was from the Midtown South Precinct stationhouse and was provided by the NYPD (BR 02). Relevant portions from both sets of footage have been extracted using Input Ace and attached below.

Findings and Recommendations

Allegation A – Abuse of Authority: Police Officer Luis Pacheco threatened to arrest G [REDACTED].

Video footage obtained for this incident, provided by Mr. G [REDACTED], captured PO Pacheco threaten to arrest Mr. G [REDACTED] if he did not leave the stationhouse. After Mr. G [REDACTED] had refused to take back possessions of his which had been confiscated for safekeeping in an incident some days prior, he requested from PO Pacheco several times to speak to an inspector. PO Pacheco explained multiple times that the inspector was not in the stationhouse and told Mr. G [REDACTED] that he had to leave the stationhouse. When Mr. G [REDACTED] continued to ask for the inspector and requested to sit and wait by his office, PO Pacheco told Mr. G [REDACTED], "I'm going to order you one time to leave the precinct. If you don't leave the precinct, I'm going to have to arrest you for trespassing."



PachecoThreat.mp4

Mr. G [REDACTED] stated that when PO Pacheco presented Mr. G [REDACTED]'s confiscated property that had been damaged, he refused to sign for the property (BR 03). At the front desk of the stationhouse, PO Pacheco continued to tell Mr. G [REDACTED] to take his property. When Mr. C [REDACTED]

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requested to see an inspector, PO Pacheco responded that one was not available. Mr. G [REDACTED] stated that he would wait for the inspector to arrive. PO Pacheco told Mr. G [REDACTED] to leave the stationhouse. When Mr. G [REDACTED] continued to tell PO Pacheco that he would wait for the inspector, PO Pacheco told Mr. G [REDACTED] that if he did not leave, he would be arrested for trespassing.

PO Pacheco recalled meeting Mr. G [REDACTED] in the stationhouse garage to retrieve property (BR 04). He recalled that Mr. G [REDACTED] refused to take his property so PO Pacheco returned to the front desk of the stationhouse. Mr. G [REDACTED] then returned to the front desk area and spoke to members of Patrol Borough Manhattan South's Times Square Unit. PO Pacheco did not recall further interacting with Mr. G [REDACTED]. He did not recall asking Mr. G [REDACTED] to leave the stationhouse or threatening to arrest him if he did not. Upon viewing Mr. G [REDACTED]'s cell phone footage, PO Pacheco recognized the officer's voice as his own. It did not change his recollection of the incident, but PO Pacheco stated that he threatened to arrest Mr. G [REDACTED] for trespassing as Mr. G [REDACTED]'s issue was resolved and he refused to leave the stationhouse. He did not recall if he ordered Mr. G [REDACTED] to leave multiple times. PO Pacheco stated that an individual could be arrested for trespassing in a stationhouse after refusing multiple orders to leave the stationhouse.

Sgt. Figueroa confirmed that due to Mr. G [REDACTED]'s persistent and loud arguing, officers in the stationhouse could not fully perform their duties and Mr. G [REDACTED] could have been arrested (BR 05). It was at that point that Sgt. Figueroa decided that Mr. G [REDACTED] had to leave the stationhouse, which he communicated to Mr. G [REDACTED]. Sgt. Figueroa recalled this being the first time any officer asked him to leave. He was unable to identify PO Pacheco when played the portion of video embedded above and it did not change his recollection. Sgt. Schack (BR 06) and Sgt. Murphy (BR 07) did not recall the incident.

New York State Penal Law § 140.05 regarding trespass states that a person is guilty of trespass when he knowingly enters or remains unlawfully in or upon premises (BR 08). People v. Reape 22 Misc. 3d 615 (2008) applied New York State Penal Law § 140.05 in finding the guilt of an individual who did not comply with an order to leave a police stationhouse after yelling and requesting to see a detective who was not in the building (BR 09).

According to PO Pacheco and Sgt. Figueroa, Mr. G [REDACTED] remained needlessly in the stationhouse and behaved in a way that disrupted the daily business of the stationhouse. Whether PO Pacheco's order to Mr. G [REDACTED] to leave the stationhouse was one of many commands or the sole command is irrelevant. According to New York State Penal Law § 140.05 and the opinion in People v. Reape, it is enough for a police officer to issue one command to an individual to leave a stationhouse or other public property if that individual serves no legitimate purpose in being there. The fact that PO Pacheco told Mr. G [REDACTED] to leave the stationhouse after explaining multiple times that an inspector was not in the stationhouse is sufficient basis for threatening to arrest him for trespassing. Therefore, it is recommended that **Allegation A** be closed as **exonerated**.

Allegation B – Offensive Language: Sergeant Douglas Schack made remarks to G [REDACTED] based upon a mental disability.

Allegation C – Offensive Language: Sergeant Douglas Schack made remarks to G [REDACTED] based upon ethnicity.

Video footage obtained for this incident, provided by Mr. G [REDACTED], shows Mr. G [REDACTED] in a back-and-forth with Sgt. Murphy and Sgt. Schack regarding the rules governing vending in Times Square. At some point, Sgt. Murphy shows him a copy of the rules. Mr. G [REDACTED] does not seem to understand the sergeants' explanations or the rules, and questions their validity.

Eventually, Sgt. Schack asks Mr. G [REDACTED], “Are you, like, retarded or something?”. Then, soon after, Sgt. Schack tells Mr. G [REDACTED] to, “Learn how to read English.”



SchackOL.mp4

According to Mr. G [REDACTED], Sgt. Murphy and Sgt. Schack approached Mr. G [REDACTED] while he was speaking with PO Pacheco at the stationhouse desk. Mr. G [REDACTED] was making requests to speak with an inspector and was denied. At some point during this interaction, Sgt. Schack asked him if he was “retarded” as well as told him, “He had to learn (how to read) English (better).” Mr. G [REDACTED] stated that this is, “just the way he talks.” Mr. C [REDACTED] identified this officer by name as “Sgt. Shok,” which most matches Sgt. Schack.

Sgt. Schack did not recall asking Mr. G [REDACTED] if he was “retarded” or telling Mr. G [REDACTED] to learn English or to learn how to read English better. He stated that as Mr. G [REDACTED] always records his interactions with police officers, he would have been especially cautious with his language. Upon viewing Mr. C [REDACTED]’s cell phone footage, Sgt. Schack stated that the voice sounded like his own. He did not definitively identify the voice as his own and it did not change his recollection of the incident.

Sgt. Murphy did not recall Sgt. Schack’s involvement in this incident. He stated that no officer ever asked Mr. G [REDACTED] if he was retarded. He also stated that no officer ever told Mr. G [REDACTED] to learn English or to learn how to read English better. Upon viewing Mr. G [REDACTED]’s cell phone footage, Sgt. Murphy stated that he thought the voice was Sgt. Schack’s but that he was not absolutely sure. It did not change his recollection of the incident.

Sgt. Figueroa did not recall Sgt. Schack’s involvement in this incident and did not recognize the voice in Mr. G [REDACTED]’s cell phone footage.

PO Pacheco did not recall any officer asking Mr. G [REDACTED] if he was retarded or telling Mr. G [REDACTED] to how to read English.

Patrol Guide Procedure 203-10, concerning prohibited conduct when contacting the public, includes discourteous or disrespectful remarks regarding another person’s disability or ethnicity as prohibited conduct (BR 10).

Based on Mr. G [REDACTED]’s cell phone footage, an officer can be heard asking Mr. G [REDACTED] if he was “retarded” then telling him to, “learn how to read English.” These two statements are uttered by the same officer in the footage, which was recorded without stoppages. Mr. G [REDACTED] identified this officer by name as “Sgt. Shok,” which sounds almost identical to Sgt. Schack’s name. Sgt. Schack and Sgt. Murphy stated that the voice in the footage sounded like Sgt. Schack, but neither definitively confirmed it. Sgt. Figueroa was unable to identify the voice, however, unlike Sgt. Murphy, he does not work for the same command as Sgt. Schack and might thus be less familiar with his voice. Due to these factors, the investigation has identified the voice in the footage as Sgt. Schack’s.

As noted in Patrol Guide Procedure 203-10, officers are clearly prohibited from using such language as “retarded” and other derogatory terms concerning disabilities. Additionally, officers are clearly prohibited from making discourteous remarks about an individual’s ethnicity. Though Sgt. Schack’s comments do not address Mr. G [REDACTED]’s ethnicity directly, he is criticizing the English-language skills of an individual with a foreign accent. Therefore, it is recommended that **Allegations B and C** be closed as **substantiated**.

Allegation D – Force: Sergeant Edgar Figueroa used physical force against [REDACTED]

Video footage from the Midtown South Precinct security cameras, provided by the NYPD, captured Sgt. Figueroa motioning for Mr. G [REDACTED] to leave. He then places his right hand on Mr. G [REDACTED]'s back, extending his arm almost completely. He guides Mr. G [REDACTED] all the way to the front door and outside with his arm extended and his palm flat against Mr. G [REDACTED]'s back. Other officers physically interact with Mr. G [REDACTED] during this time, however it is insubstantial and Mr. G [REDACTED] only complained of Sgt. Figueroa's contact.



FigueroaForce.mp4

Mr. G [REDACTED] stated that while he spoke to Sgt. Murphy and Sgt. Schack about the vending rules and seeing an inspector, Sgt. Figueroa came from behind him and pushed him. While Mr. G [REDACTED] told Sgt. Figueroa not to push him, Sgt. Figueroa continued to push Mr. G [REDACTED]'s back, forcing him out of the stationhouse. Mr. G [REDACTED] did not fall, collide with anything, or suffer any injuries.

According to Sgt. Figueroa, when Mr. G [REDACTED] refused to leave and requested to speak with someone with more authority, Sgt. Figueroa told him that it was time to go. He then “guided” Mr. G [REDACTED] through the front area of the stationhouse and out onto the front steps. Sgt. Figueroa described this guidance as placing one hand with an open palm on Mr. G [REDACTED]'s back. Though Mr. G [REDACTED] slightly resisted leaving the stationhouse as he shuffled his feet while exiting, he moved freely and at his own pace. Sgt. Figueroa stated that he did not force any movement by Mr. G [REDACTED]. He ceased contact with Mr. G [REDACTED]'s back once out on the front steps. Once outside, he reiterated to Mr. G [REDACTED] that there was nothing more to be done by officers in the stationhouse.

PO Pacheco, Sgt. Schack, and Sgt. Murphy did not recall Sgt. Figueroa making physical contact with Mr. G [REDACTED].

Patrol Guide Procedure 221-01 for “Force Guidelines” states that police officers will use de-escalation techniques to safely gain compliance from a subject and reduce or eliminate the necessity to use force (BR 11). If that is not possible, officers will use only the reasonable force necessary to gain control of a subject.

The force captured in the portion of video embedded above is minimal. In the entirety of Mr. G [REDACTED]'s cell phone footage, multiple officers are heard ordering Mr. G [REDACTED] multiple times to leave the stationhouse. Mr. G [REDACTED] continuously argued with officers about the rules pertaining to his vending and requested to see an inspector multiple times despite being told that the inspector was not present that day. Officers tried to order Mr. G [REDACTED] out of the stationhouse multiple times as he was creating a scene. Because Mr. G [REDACTED] refused to comply with this lawful order to leave, Sgt. Figueroa used a minimal amount of force to ensure his compliance. Therefore, it is recommended that **Allegation D** be closed as **exonerated**.

Allegation E – Abuse of Authority: Sergeant Edgar Figueroa threatened to arrest [REDACTED]

Video captured by Mr. G [REDACTED] on his cell phone shows that once Sgt. Figueroa and Mr. Grytsyk are outside of the stationhouse, Sgt. Figueroa provides his name and shield number before telling Mr. G [REDACTED] one last time to leave. He then returns inside the stationhouse. While Mr. G [REDACTED]'s footage continues for several more minutes, Sgt. Figueroa is not seen or heard again. No other officer threatens to arrest Mr. G [REDACTED].



FigueroaAudio.mp4

Following the push, Mr. G [REDACTED] stated that Sgt. Figueroa threatened to arrest him if he came back. Mr. G [REDACTED] confirmed that he had no further interactions with Sgt. Figueroa until some hours later, which unfolded without incident and was unrelated to this allegation.

Though Mr. G [REDACTED] alleged that Sgt. Figueroa threatened to arrest him outside of the stationhouse, there is clear audio and images in the above embedded footage that show Sgt. Figueroa issuing no such threat before his interaction with Mr. G [REDACTED] is concluded. Therefore, it is recommended that **Allegation E** be closed as **unfounded**.

Civilian and Officer CCRB Histories

- Mr. G [REDACTED] has been party to seven other CCRB complaints and has been named as a victim in six other allegations (BR 12):
 - 201807510 is still open and involves allegations of threats of arrest and property seizure.
 - 201807838 is still open and involves allegations of threats of summons, threat to seize property, and spoken discourtesy
 - 201603303, 201805883, 201806449, and 201807922 were referred to the Office of the Chief of Department.
- PO Pacheco has been a member of service for 18 years and has been a subject in one other CCRB complaint with four allegations (see officer history). None of the allegations were substantiated. PO Pacheco's CCRB history does not reflect any pattern pertinent to this investigation.
- Sgt. Schack has been a member of service for 16 years and has been a subject in four other CCRB complaints with eight allegations (see officer history). Two of the allegations were substantiated, both in 200701300, one for a retaliatory arrest and another for a spoken discourtesy. Sgt. Schack's CCRB history does not reflect any pattern pertinent to this investigation.
- Sgt. Figueroa has been a member of service for 10 years and has been a subject in four other CCRB complaints with eight allegations (see officer history). One allegation of a stop in 201105724 was substantiated. Sgt. Figueroa's CCRB history does not reflect any pattern pertinent to this investigation.

Mediation, Civil and Criminal Histories

- This case was sent to mediation on September 25, 2018. It was returned to Investigations on October 10, 2018, since Mr. G [REDACTED] stated that he wanted an investigation after conferring with a lawyer he retained.
- On December 3, 2018, a FOIL request was submitted with the NYC Comptroller's Officer for any Notices of Claim related to this incident and will be added to the case file upon receipt.
- According to the Office of Court Administration, Mr. G [REDACTED] has no history of convictions in New York City (BR 13).

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